

Imteyaz Ahmed v. U.P. Rajya Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · Writ-C No. 42583 of 2019 · WRIT - C No. - 42583 of 2019 · **Writ disposed of; EE to pass speaking final order on objections; s.127 if aggrieved; coercive action stayed six weeks.**

HEADNOTE

A consumer who challenged a recovery citation of Rs 66,584 as coercive action without hearing, and as contrary to the U.P. Electricity Supply Code, 2005, obtained no decision on the demand. The Division Bench directed him to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, and stayed coercive recovery for six weeks or until disposal of the objection, whichever was earlier. If still aggrieved by that final order, the consumer was left to an appeal under Section 127 of the Electricity Act, 2003. Failure to appear would automatically revive the recovery citation. The writ was disposed of.

FACTUAL SUMMARY

Imteyaz Ahmed petitioned the Allahabad High Court for a mandamus restraining U.P. Rajya Vidyut Vitran Nigam Ltd. from coercive recovery of Rs 66,584 under recovery certificate dated 17 September 2019 (No. 2706). He alleged that the licensee was proceeding without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the Electricity Department was heard. No final assessment order was on the record as the subject of the challenge; the live controversy was the threatened recovery.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order then section 127 appeal

HOLDING

Without examining the Supply Code complaint or the quantum of the recovery citation, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for six weeks or until disposal of the objection (whichever earlier), and left any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance would automatically revive the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to consider the consumer's objections to the recovery citation and pass a speaking final order, the Court left any remaining grievance to an appeal under Section 127 and did not decide the demand on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY OF RS 66,584 ACCORDED WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The petitioner alleged non-compliance and want of hearing; the Court did not examine the Code or the demand. ¶ 1

NOT DECIDED — QUANTUM AND LEGALITY OF THE RECOVERY CITATION DATED 17.09.2019

¶ 1

